

		Here, the FAC sufficiently alleges a cause of action for fraudulent concealment against Defendant. As such, the FAC alleges sufficient facts to warrant punitive damages against Defendant. The Motion is DENIED.
108.	2022-1272612 Guerrero v. A Better Life Recovery, LLC.	Plaintiff's Objections 1 – 4 to the Declaration of William Mara are OVERRULED. Defendants' Objections 1 – 14 to the Declaration of Christian J. Petronelli are OVERRULED. Defendants' Objections 1 – 9 to the Declaration of Rachel Guerrero are OVERRULED. Defendants, A Better Life Recovery, LLC and A Mission For Michael, Inc., Motion to Compel Arbitration is DENIED. Defendants have not met their burden of showing that a valid written agreement to arbitrate exists. The Declaration of William Mara does not lay a proper or sufficient business records foundation under Evidence Code §1271. Because he has not laid a sufficient business records foundation, it has not been shown that any electronic signature has been shown to be the act of plaintiff as required by Civil Code §1633.9(a). Moving party shall give notice.
109.	2023-1311720 Home Expo Group LLC v. Nguyen	Off calendar pursuant to Notice filed.
110.	2022-1295621 Kowalski v. BMW of North America LLC	Defendant BMW of North America, LLC.'s motion to compel arbitration of Plaintiffs Tuvet Tran's and Lucille Kowalski's claims is denied. Plaintiffs' objections are overruled. The Retail Installment Sales Contract ("RISC") that Plaintiffs signed when they purchased the vehicle at issue in this Song-Beverly case contained an arbitration provision that includes the following language (emphasis added): Either you or I may choose to have any dispute between us decided by arbitration and not in a court or by jury trial. If a dispute is arbitrated, I will give up my right to participate as a class representative or class member on any Claim I may have against you including any right to class arbitration or any consolidation of individual arbitrations. Discovery and rights to appeal in arbitration are generally more limited than in a